

M/S Dates Discs Ltd. v. Chandan Prakash, Executive Engineer, EUDD & Another

High Court of Judicature at Allahabad · Single Judge · 27 September 2012 · Contempt Application (Civil) No. 2457 of 2012 (arising from Writ Petition No. 18425 of 2012) · **Contempt application disposed of on compliance: after prima facie disobedience of the Division Bench's interim order dated 16.05.2012 (restore supply within 24 hours) was found, the opposite parties (the Executive Engineer and the Sub Divisional Officer) restored the applicant's electricity connection on 26.09.2012; the notices were accordingly discharged and the application consigned to record.**

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HEADNOTE

In a contempt application for defiance of a Division Bench's interim order dated 16 May 2012 — which directed the Executive Engineer to restore the applicant's power connection within 24 hours of service of a certified copy, gave the licensee liberty to inspect and check the meter, and restrained the consumer from obstructing meter reading — the Court held that the validity of the disconnection and the licensee's contention that the consumer must shift the meter to the main road and provide access under Clause 5.4(f) of the U.P. Electricity Supply Code, 2005 could not be examined in the contempt proceedings and had to be adjudicated in writ jurisdiction. In contempt the Court examines only obedience of its order; the licensee being under a direction to restore supply, its Clause 5.4(f) meter-access grievance was no answer to nearly four months of non-restoration, which was prima facie contempt for which the officers were liable to be proceeded against for framing of charges. On the officers' undertaking and their eventual restoration of the connection on 26 September 2012 (evidenced by compliance affidavits and the applicant's endorsement), the contempt was purged, the notices were discharged and the application consigned to record.

FACTUAL SUMMARY

The applicant, M/S Dates Discs Ltd., a consumer of about 40 years' standing, had its electricity connection disconnected on 12 March 2012 (the Department contending that its officers had to spend 25-30 minutes taking meter readings at the meter's location near the factory, and the consumer stating the line was cut because the land through which it passed had been bought by a builder). The consumer challenged the disconnection in Writ Petition No. 18425 of 2012, in which the Division Bench, by interim order dated 16 May 2012, directed the Executive Engineer (respondent no. 3) to restore the connection within 24 hours of service of a certified copy, gave the licensee liberty to inspect and check the meter, and restrained the consumer from obstructing meter reading. The certified copy was served on 18 May 2012, so supply ought to have been restored by 19 May 2012; despite reminders it was not, and the consumer filed this contempt application, in which notices were issued on 29 May 2012. In its counter affidavit the Department maintained that the consumer should shift its meter to the G.T. Road and, relying on Clause 5.4(f) of the Code, that the meter must be installed at the point of supply with access to the licensee for meter reading, which the consumer was allegedly not providing. The Court declined to examine those issues in contempt, found prima facie disobedience, and, on the officers' undertaking, allowed time; the connection was ultimately restored on 26 September 2012.

REUSABLE CONSTRUCTIONS

1. In contempt jurisdiction the court examines only whether its order has been obeyed; the validity of a disconnection and a dispute over meter location or access under Clause 5.4(f) of the U.P. Electricity Supply Code, 2005 cannot be examined in the contempt proceedings and must be adjudicated in writ jurisdiction. **order of 31.8.2012**
2. A licensee directed to restore supply within a fixed time cannot defy that order by insisting that the consumer first shift the meter to the main road and provide access under Clause 5.4(f); such a grievance is no defense to disobedience and must be pursued separately in writ jurisdiction — the licensee must restore supply first. **order of 31.8.2012**
3. Prolonged non-restoration of supply in breach of a binding interim order is prima facie contempt for which charges may be framed; the contempt is purged where the contemnors ultimately restore the connection, whereupon the notices are discharged and the application consigned to record. **order of 11.9.2012; order of 27.9.2012**

INTERPLAY · UP-2005::5.4(f)

RATIO

A Clause 5.4(f) meter-location/access dispute is no defense to contempt and cannot be examined in contempt proceedings

QUESTION

In a contempt application for non-restoration of supply in breach of a Division Bench's interim order, can the licensee resist by raising a Clause 5.4(f) meter-location/access dispute, and can the validity of the disconnection be examined in contempt?

HOLDING

No. In contempt jurisdiction the Court examines only whether its order has been obeyed. Whether the disconnection was validly made on justifiable grounds — and the licensee's Clause 5.4(f) contention that the consumer must shift the meter to the main road and provide access for meter reading — cannot be examined in the contempt proceedings and are to be adjudicated in writ jurisdiction. The Department being under a direction to restore supply within 24 hours, its Clause 5.4(f) grievance was no answer to the disobedience; non-restoration for nearly four months was prima facie contempt for which the officers were liable to be proceeded against for framing of charges. **order of 31.8.2012; order of 11.9.2012**

EVIDENCE “These issues cannot be examined in this contempt proceedings. Whether or not the disconnection was validly made on justifiable grounds is to be adjudicated in writ jurisdiction.” **order of 31.8.2012**

EVIDENCE “under Clause 5.4 (f) of the U. P. Electricity Supply Code 2005 meter is to be installed at the point of supply either at the consumer premises or outside the consumer premises so that there is access to the licensee for meter reading and other purposes” **order of 31.8.2012**

EVIDENCE “Thus prima facie, there is disobedience of non compliance of the interim order of the Division Bench for which the opposite parties are liable to be proceeded with further for framing of charges.” **order of 11.9.2012**

FLAG Source is a contempt order-sheet across several dates (29.5.2012-27.9.2012); not paginated, so pins reference the order dates. Notice was issued by Krishna Murari, J. (29.5.2012); the substantive hearings and disposal were by Vikram Nath, J.

PRINCIPLE TAGS

contempt-court-examines-only-obedience-not-validity-of-disconnection The Court refused to examine whether the disconnection was justified, holding that question to be for writ jurisdiction; in contempt it looked only at obedience of the restoration order. **order of 31.8.2012**

clause-5-4f-meter-access-dispute-no-defence-to-restoration-order The Department's Clause 5.4(f) demand that the consumer shift the meter to the main road and provide access was held to be no defense to disobedience of the order to restore supply within 24 hours. **order of 31.8.2012**

contempt-purged-on-restoration-of-supply On the officers restoring the connection on 26.9.2012 (compliance affidavits and the applicant's endorsement), the contempt was satisfied, the notices discharged and the application consigned to record. **order of 27.9.2012**

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DISCONNECTION WAS VALIDLY MADE ON JUSTIFIABLE GROUNDS, AND WHETHER THE CONSUMER MUST SHIFT THE METER TO THE MAIN ROAD AND PROVIDE ACCESS UNDER CLAUSE 5.4(F)

Expressly left to writ jurisdiction; these issues could not be examined in the contempt proceedings and were not adjudicated on merits. **order of 31.8.2012**

RELATED CASES — SEE ALSO

SCJ-060 — M/S Mohit Paper Mills (2011) — meter-location theme: a theft assessment could not rest on presumption from check-meters installed outside the premises.

SCJ-707 — M/s Baba Ice and Cold Storage (2010) — a contempt application in an electricity-supply matter disposed of on the opposite party's compliance, with the notice discharged.

